The land is grazing land located ½ mile north of Harding, South Dakota, and can be reached over a county gravel road. The topography is rolling to rough. The soil consists of a shallow layer of sandy loam over a rocky and highly calcareous sandy clay subsoil. Vegetation consists of short to midgrasses. Annual precipitation is approximately 13 inches.

No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any existing rights and the requirements of applicable law, the lands described are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. The lands have been open to application and offers under the mineral-leasing laws. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert-Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on December 9, 1955, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on March 10, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on March 10, 1956. will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on March 10. 1956.

Persons claiming veteran's preference rights under paragraph a (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries regarding the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Billings, Montana.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

NOVEMBER 3, 1955.

[F. R. Doc. 55-9054; Filed, Nov. 9, 1955; 8:45 a. m.]

[Public Land Order 1247]

[1500537–1506978]

NEW MEXICO

PARTIALLY REVOKING EXECUTIVE ORDERS NO. 6276 OF SEPTEMBER 8, 1933 AND NO. 6583 OF FEBRUARY 3, 1934 WHICH WITHDREW LANDS TO AID THE STATE IN MAKING EXCHANGE SELECTIONS

By virtue of the authority vested in the President by the act of June 25, 1910, ch. 421 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Orders No. 6276 of September 8, 1933 and No. 6583 of February 3, 1934, withdrawing public lands to aid the State of New Mexico in making exchange selections are hereby revoked so far as they affect the following-described lands:

In Executive Order No. 6276:

[1500537]

NEW MEXICO PRINCIPAL MERIDIAN

T. 21 S., R. 6 W.,
Sec. 19, lots 1 and 2, E½NW¼ and SW¼ NE¼;
Sec. 30, NW¼SE¼, E½SW¼;
Sec. 31, W½NE¼, SE¼NE¼, E½NW¼, NE¼SW¼, N½SE¼, SE¼SE¼.
T. 21 S., R. 7 W.,
Sec. 13, lots 9 to 16, inclusive;
Sec. 24, lot 15;
Sec. 25, lots 2, 7, 10, and 15.

In Executive Order No. 6583:

[1506978]

T. 21 S., R. 6 W.,
Sec. 18, lots 3 and 4, E½SW¼;
Sec. 19, lot 3, NW¼NE¼, NW¼SE¼;
Sec. 30, SE¼NE¼, NE¼SE¼;
Sec. 31, NE¼NE¼.
T. 21 S., R. 7 W.,
Sec. 24, lots 1, 2, 7, and 8.

The areas described aggregate 1,728.08 acres for both orders.

The lands are generally grazing lands.

No application for the lands may be allowed under the homestead, small tract, desert-land, or any other nonmineral public-land law unless the land has already been classified as valuable or suitable for such type of application or shall be so classified upon consideration of an application.

Subject to any existing valid rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public land laws and applications and offers under the mineral leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraph:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on December 10, 1955, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on March 10, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws, other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral leasing laws, presented prior to 10:00 a. m. on March 10, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands are now open to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on March 10, 1956.

Persons claiming veterans preference rights under Paragraph a (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office,

Bureau of Land Management, Santa Fe, New Mexico.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

NOVEMBER 4, 1955.

[F. R. Doc. 55-9055; Filed, Nov. 9, 1955; 8:46 a. m.]

[Public Land Order 1248]

[33331]

ALASKA

AMENDING PUBLIC LAND ORDER NO. 1212 OF SEPTEMBER 9, 1955

Paragraph 4 (c) of Public Land Order No. 1212 of September 9, 1955, appearing as Doc. 55-7464 in 20 F. R. 6797 of the issue for September 15, 1955, is hereby amended to read as follows:

(c) At 10:00 a. m. on the 91st day after the date of this order, to settlement under the homestead laws or the Alaska Home Site Act of May 26, 1934 (48 Stat. 809; 48 U. S. C. 461) or to application under the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a) as amended:

The unsurveyed public lands released from withdrawal by paragraph 1 of this order, and not otherwise rewithdrawn or restored.

Provided, however, That the following-described lands shall not be subject to application, location, settlement, entry, or other forms of appropriation under the public-land laws until further order of an authorized officer of the Bureau of Land Management:

SEWARD MERIDIAN

T. 2 N., R. 11 W.,
Secs. 5, 6, 7, and 8 (unsurveyed).
T. 2 N., R. 12 W.,
Secs. 1, 11 and 12 (unsurveyed).

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

NOVEMBER 4, 1955.

[F. R. Doc. 55-9056; Filed, Nov. 9, 1955; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF COMMERCE

Federal Maritime Board and Maritime Administration

[46 CFR Ch. II]

[Docket No. S-59]

AMERICAN PRESIDENT LINES, LTD.

EXTENSION OF TIME LIMITATION

Notice of proposed rule making in connection with petition of American President Lines, Ltd., was published in the FEDERAL REGISTER issue of October 26, 1955 (20 F. R. 8050).

Notice is hereby given that the time stipulated therein for submission of written data, views, or arguments relative thereto is hereby extended to January 15, 1956.

Dated: November 8, 1955.

By order of the Federal Maritime Board/Maritime Administrator.

[SEAL] A. J. WILLIAMS,
Secretary.

[F. R. Doc. 55-9125; Filed, Nov. 9, 1955; 8:58 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

[29 CFR Part 779]

AUTOMOTIVE TRADE

RETAIL OR SERVICE ESTABLISHMENT AND APPLICATION OF CERTAIN EXEMPTIONS

Pursuant to authority under the Fair Labor Standards Act of 1938, as amended (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), notice is hereby given that the Administrator of the Wage and Hour Division of the United States Department of Labor, proposes to amend Interpretative Bulletin, Part 779 (29 CFR Part 779) by the addition of § 779.36 to read as follows:

§ 779.36 *Application of the 13 (a) (2) exemption to the automotive trade.* (a) It is the purpose of this section to show generally how the principles governing the application of the section 13 (a) (2) exemption apply to establishments engaged in the sale of automobiles, trucks, parts, accessories and repair services.

(b) All sales of automobiles, trucks, automobile parts, accessories, servicing and repair work will be considered retail except those set out below:

(1) Sales for resale: For example, sales for resale include sales to garages, service stations, repair shops and automobile dealers where these establishments resell the various items or where they use them in repairing customers' vehicles or in reconditioning used cars for resale. However, this does not apply to transfers of such items between departments within the dealer's establishment. Thus, transfers of parts from the parts department to the service department of the automobile dealer's establishment are not sales to the service department and are not, therefore, sales for resale. Such transfers from one department to another will be disregarded in computing the establishment's sales for determining the applicability of the 13 (a) (2) exemption. So also accommodation transfers of automobiles between dealers will be disregarded in computing the establishment's sales under section 13 (a) (2). Accommodation transfers refer to occasional exchanges or transfers of automobiles between dealers and not to situations wherein a dealer supplies cars to other dealers as part of what may be described as a distribution system.

(2) Sales made pursuant to a formal invitation to bid. Such sales are made under a procedure involving the issuance by the buyer of a formal invitation to bid on certain merchandise for delivery in accordance with prescribed terms and specifications. Sales to the Federal, state, and local governments are typically made in this manner.

(3) Fleet sales: Sales of automobiles, trucks, parts, or accessories to national fleet owners as designated by the various automotive manufacturers, at fleet discounts, and sales to other fleet users (operating five or more units for business purposes) at discounts similar to these provided in sales to national fleet owners.

(4) Sales of specialized heavy motor vehicles or bodies (16,000 lbs. and over gross vehicle weight). The following is a complete list of these items:

(i) *Single unit trucks.*

Armored (money carrying).
Buses (integral).
Coal.
Drilling.
Dump.
Hook and ladder (fire department).
Chemical wagons (fire department).
Garbage.
Mixer.
Refrigerator.
Rotary snowplow.
Special public utility.
Street cleaning.
Tank.
Wrecker.

(ii) *Full trailers and semitrailers.*

Auto carrier.
Coal.
Dump.
Garbage.
House carrier.
Low bed carry all.
Pole (lumber).
Refrigerator.
Tank.
Van.

(5) Sales of servicing and repair work performed under a fleet maintenance arrangement on trucks and other automotive vehicles whereby the establishment undertakes to maintain a customer's fleet at a price below the prevailing retail price.

Prior to the final adoption of the proposed amendment set forth above, consideration will be given to any views, arguments or data pertaining thereto which are submitted in writing to the Administrator, Wage and Hour Division, United States Department of Labor, Washington 25, D. C., within 30 days from the date of publication of this notice in the FEDERAL REGISTER.

Signed at Washington, D. C., this 7th day of November 1955.

NEWELL BROWN,
Administrator,
Wage and Hour Division.

[F. R. Doc. 55-9071; Filed, Nov. 9, 1955; 8:49 a. m.]